

Judgment Sheet
IN THE LAHORE HIGH COURT AT LAHORE
JUDICIAL DEPARTMENT

Capital Sentence Reference No.81-T/2007
(The State vs. Amjad Sohail)

Crl. Appeal No.1394/2007
(Amjad Sohail vs. The State)

Criminal Appeal No.1742/2013
(Sayyed Khalid Javaid vs. Amjad Sohail, etc)

JUDGMENT

Date of hearing: 12.12.2013

Appellants by: Khawaja Mahmood Ahmad, Advocate for appellant.

State by: Tariq Javed, Deputy District Public Prosecutor.

Complainant by: Mr.Jalees Ahmad Mir, Advocate for complainant.

AALIA NEELUM, J.- Amjad Sohail son of Muhammad Riaz, Caste Malik, resident of Street No.6, Darbar Qadria, Ghulam Hussain Colony, Hafizabad Road, Gujranwala preferred an appeal, who was involved in case F.I.R. No.791, dated 22.09.2006, offence under Sections 302, 392 P.P.C. registered at Police Station Satellite Town, Gujranwala and was tried by Tariq Iftikhar Ahmed, Judge, Anti-Terrorism Court No. II, Gujranwala. The learned trial court seized with the matter in terms of judgment dated 15.09.2007 convicted the appellant under Section 7(a) of the Anti-Terrorism Act, 1997 and sentenced him to death along with fine of Rs.1,00,000/- as compensation to the legal heirs of deceased, failing which further undergo Simple

Imprisonment for one year. The learned trial court further observed that in presence of maximum punishment of death, charge framed under Section 302 P.P.C., has become infructuous whereas acquitted the appellant from the charge under Section 392 P.P.C. as the same could not be proved against him.

2. Feeling aggrieved by the judgment of the learned trial court, Amjad Sohail appellant has assailed his conviction and sentence through ***Crl. Appeal No.1394/2007*** whereas the complainant namely Syed Khalid Javed has preferred ***Crl. Appeal No.1742/2013*** seeking conviction and sentence to accused, Amjad Sohail under Sections 302, 392 P.P.C. Apart from, the learned trial court has submitted ***Capital Sentence Reference No. 81-T of 2007*** for confirmation of death sentence of the appellant, namely, Amjad Sohail or otherwise. As all the matters are arising out of one and the same judgment of the learned trial court, therefore, these are being *disposed of* through a consolidated judgment.

3. Prosecution story as contained in the F.I.R (Exh.P.D/2) lodged on the complaint (Exh.PD) of Syed Khalid Javed son of Syed Jameel-ul-Hassan, Caste Syed (PW9)/complainant is that on 22.09.2006 at 7:50 p.m. he was present in his house while his son, namely, Suleman Khalid (since died) along with his two friends, Hammad Zaheer Khan and Irfan were sitting outside the house. Suddenly a fire shot hit at the door of his house and he came out on hearing the same and found that two boys having age of 20/25 years were standing nearby his son while demanding his mobile phone and ultimately caused firearm injuries to his son, who fell down

whereas accused persons fled away on a motorcycle Honda CD-70 after getting mobile phone of his son. He took his injured son to Salamat Hospital wherefrom after getting first medical aid, injured was shifted to Gujranwala Hospital, who succumbed to the injuries.

4. On the basis of the complaint submitted by the complainant, formal F.I.R (Exh.P.D/2) was chalked out by Sana Ullah, AS.I. (PW-4). After registration of case, the investigation was entrusted to Asmat Ullah, Inspector (PW-13) on 22.9.2006, who after inspection of dead body prepared inquest report, (Ex.P.J) and directed Muhammad Yaqoob & Qamar Zaman, Constables to escort the dead body to the mortuary for postmortem examination and after recording supplementary statement of the complainant as well as statement of eye witnesses in hospital, he proceeded to the place of occurrence, from where he after inspection prepared site plan as Ex.P.L, also got recovered empties of 30-bore pistol along with blood stained earth and took them into his possession through recovery memo Ex.P.G & Ex.P.F which were also signed by the PWs, whose statements were recorded under Section 161 Cr.P.C. Last worn blood stained clothes by the deceased were also secured by the Investigating Officer (PW-13) through recovery memo Ex.P.E. On 09.10.2006, he arrested the accused, namely, Amjad Sohail, who was identified by the eye witnesses on 10.10.2006 in lockup and thereafter during interrogation, on the disclosure of accused, recovery memo Ex.P.H was also prepared qua motorcycle bearing registration No.GAW/8662, used in the alleged occurrence. Moreover, on the pointation of accused, after effecting recovery of a 30-bore

pistol as well as live bullets P-6/1-4, recovery memo Ex.P.I was also prepared.

5. Having found the appellant guilty, the Investigating Officer prepared incomplete report under Section 173, Cr.P.C. and sent the same to the court of competent jurisdiction. On 20.01.008, the learned trial court formally charge sheeted the appellant to which he pleaded not guilty and claimed trial. The prosecution in support of its version produced as many as thirteen (13) prosecution witnesses.

6. Ocular account of first part of occurrence in this case has come out from the statements of Syed Khalid Javed (PW-9), Hammad Zaheer Khan (PW-10), Asmat Ullah, Investigating Officer (PW-13) along with Furqan Aziz (PW-11) whereas Dr. Jameel Ahmad Mirza (PW-3) had conducted postmortem examination of the dead body of the deceased Suleman Khalid on 22.09.2006 and found following injuries on his person:-

- i) *Firearm lacerated wound 3/4 x 3/4 cm into going deep, inverted margins on outer part of left upper arm, lower part of deltoid (wound of entry).*
- ii) *Firearm lacerated wound of exit 1 x 1 cm everted margins located at on outer part of left shoulder, middle part (wound of exit).*
- iii) *Firearm glancing wound 2 x 3/4 cm on back of left hand near base of middle finger.*
- iv) *Firearm glancing wound 3/4 x 1 cm (abrasion) between the opening of right nostril and right part of upper lip. The wound is continued into the right nostril.*
- v) *Fire arm lacerated wound 1 x 1 cm on left side of occipital region with everted margins.*

After conducting the postmortem examination, the doctor rendered the following opinion:-

“the death in this case was occurred due to cardiopulmonary arrest resulting from cessation of brain functions and consequent due to injury No.4 which was sufficient to cause death in an ordinary course of nature. All the injuries were ante-mortem in nature and were caused by firearm weapon.

Probable time between injury and death was within an hour whereas between death and postmortem examination is Ex.P.C, sketches of injuries Ex.P.C/1 and Ex.P.C/2 were signed by him”.

The statements of remaining prosecution witnesses are formal in nature.

7. PWs, namely, Asim Zubair, Barkat Mehmood and Irfan were given up on 06.02.2007 & 01.3.2007 being unnecessary. The learned Public Prosecutor closed the prosecution evidence while tendering the report of Chemical Examiner Ex.PM, report of Forensic Science Laboratory as Ex.P.N & report of Serologist, Ex.PO.

8. The appellant was examined under Section 342 Cr.P.C, wherein the appellant did not opt to appear as his own witness as provided under Section 340 (2) Cr.P.C to disprove the allegations leveled against him, however, he opted to lead defence evidence. In response to the question that why this case against him and why the PWs deposed against him, the appellant made following deposition:-

“All have been fabricated, deliberately against me as non true to the facts as concerned to my role in this case. I have been involved falsely in this case on one hand that my father namely Malik Muhammad Riaz was a police Constable and had been working under the headship of Inspector, Shahbaz Hanjra (SHO) in year 2003, the then SHO police Station Baghbanpura. An inquiry was got conducted under a false complaint of Inspector Shehbaz Hanjra as he considered that my father was not obedient to him in service matters and otherwise to and in that connection a show cause notice was also served upon my father and finally service of my father was terminated under the influence of said Inspector, Shehbaz Hanjra. After getting my father terminated from the police service, he further threatened to my father to register false and criminal cases against my father and other family members especially my self and my other brothers to teach an exemplary lesson.”

This is a blind murder case which remained un-witnessed at the time of occurrence about which I do not know any thing whatsoever. The Investigating Officer of this case being subordinate to said Inspector, Shehbaz Hanjra also conducted investigation of this case dishonestly and with malafide intention. Investigating Officer and complainant party under the shelter of said Inspector, Shehbaz Hanjra created false and inadmissible evidence against me. The other legal novel features have also been ignored such as process of identification parade, even otherwise a number of accused were arrested in this case as real culprits. One accused namely Sajid was apprehended being real culprit and was sent to judicial lockup for identification parade purposes. But no such procedure was adopted. Then and there with the active collaboration of said Inspector Shehbaz Hanjra complainant

party and PWs, I was involved wrongly. Prosecution witness of Waj Takkar deposed falsely against me as his deposition is unnatural, afterthought, improbable and not plausible and he remained mum for 13 long days about this blind and un-witnessed murder. Said PW of Waj Takkar namely Furqan Aziz Butt is a stock and professional witness and also an entrusted witness being a close friend of real uncle of deceased namely Syed Sajid Javed the other PW of Waj Takkar. It is pertinent to mention here that even Syed Sajid Javed PW being real uncle of deceased did not appear before the Honourable Court for recording evidence in order to support false version of prosecution story. It is also evident from record that I sustained injury on my right leg in case F.I.R. No.528, under Section 394 P.P.C., police Station Model Town, Gujranwala and my real brother Mazhar Saeed was complainant of that case, in which we both were victims of dacoits and resultantly I remained admitted in District Headquarter Hospital, Gujranwala from 21-05-2006 to 27-05-2006. During this period two criminal cases bearing F.I.R. No.465 dated 10.06.2006 under Section 392 P.P.C., Police Station, Satellite Town, Gujranwala and F.I.R. No.428, dated 29.05.2006 under Section 392 P.P.C., Police Station, Satellite Town, Gujranwala respectively were got registered against me where said Inspector Shehbaz Hanjra at that time was S.H.O., Police Station Satellite Town, Gujranwala. Actually during this period I was not able to even move from bed as I was under treatment and was admitted in DHQ, Hospital Gujranwala as a patient. Furthermore, to advance this fact that I was operated upon with the permission of Jail Superintendent Central Jail, Gujranwala on 06-2006 and a de-shaped metallic body was found during operation. The prosecution witness of Waj Takkar Furqan Aziz Butt and other PWs have deposed falsely being next door neighbours, friend and relatives with the

connivance of said Inspector Shehbaz Hanjra. It is also clear from the record that an Article investigative relating to said murder case was published in daily "Jang" Gujranwala which amply proves my innocence in this blind case wherein the author of said Article is also a neighbour and close friend of complainant of this case."

In defence, Muhammad Arif appeared as DW-1.

9. Learned trial court after evaluating the evidence available on record in the light of arguments advanced from both sides, found the prosecution version proved beyond shadow of reasonable doubt resulting into conviction and sentence of the appellant in the afore noted terms.

10. The learned counsel for the appellant has contended that the appellant was not named in the F.I.R., rather implicated in this case on the basis of supplementary statements of Sajid (PW) and Syed Khalid Javed, complainant and as a matter of fact, it was a case of blind murder and nobody had seen the occurrence. Entire ocular evidence is based upon dishonest improvements and material contradictions. As far as, positive report of Forensic Science Laboratory is concerned, the learned counsel for the appellant has contended that the empties and pistol were sent to the Forensic Science Laboratory after recovery of the alleged pistol, as such the positive report of Forensic Science Laboratory is neither believable nor advance the case of prosecution. It has further been contended that no identification parade was conducted in this case and mere identification of the PWs in police custody and during trial of the case would not support the prosecution case as entire description of the accused were not given in crime report and as

such the prosecution case does not stand on its own legs. It has also been argued that evidence of "Waj Takkar" is not reliable as apart from being a close friend of the complainant, he attended funeral ceremony of the deceased on the same day and complainant as well as his credential is not trust worthy. On the said submissions, the learned defence counsel has argued that the prosecution has miserably failed to prove its case against the appellant, therefore, he is entitled to acquittal.

11. On the other hand, Learned Deputy District Public Prosecutor as well as learned counsel for the complainant have supported the impugned judgment by contending that the prosecution has successfully proved its case through ocular testimony, medical evidence and recovery of crime weapon coupled with the positive report of Forensic Science Laboratory. The learned counsel for complainant while referring cross-examination conducted by the learned defence counsel at trial stage on Asmat Ullah, Inspector (PW-13), whereby he made following deposition:-

"During interrogation on 14.10.2006 Amjad Sohail accused deposed that during the occurrence he was empty handed and pistol was used by his co-accused Nadeem alias Deema."

further argued that the defence/appellant had admitted his guilt and prosecution by way of producing cogent and reliable evidence has successfully proved its case against the appellant. It was contended that the learned trial court after touching each and every aspect of the case and while evaluating the evidence available on the record in its true perspective has rightly convicted and sentenced the appellant. In such peculiar

circumstances of the instant case, the appellant does not deserve any leniency and his appeal is liable to dismissal.

12. Arguments advanced from both sides have been heard. We have also gone through the record available on file with the able assistance of learned counsel for the parties.

13. Admittedly the occurrence in the instant case had taken place on 22.09.2006 at about 7.45 p.m. whereas the matter was reported to the police on the same day at 9.15 p.m. while inter-se distance between the place of occurrence and police station is 1½ kilometers, however, no plausible explanation has been rendered by the prosecution for delay in reporting the matter to the police. Moreover, neither the appellant-Amjad Sohail was nominated in the F.I.R., nor description of any of the accused was stated therein and his name surfaced in the case for the first time through supplementary statement made on 05.10.2006 by the complainant (PW-9), Syed Khalid Javed, father of deceased after delay of about 14 days of the occurrence. Supplementary statement can not be equated as F.I.R. At the most, it can be termed and treated as statement under Section 161 Cr.P.C. Reliance has been placed on the case reported as “**Falak Sher alias Sheru v. The State**” (1995 SCMR 1350), “**Anees ur Rehman and another v. The State**” (2008 SCMR 1556), “**Khalid Javed and other v. The State**” (2003 SCMR 1419).

14. Since alleged occurrence was committed by unknown persons, therefore, holding of identification test was essential, as eye witnesses did not known to them. Syed Khalid Javed (PW-9) and Hammad Zaheer (PW-10) during cross-

examination categorically stated that they had identified the accused in the lockup at police station. The complainant, Syed Khalid Javed (PW-9) also admitted in cross-examination that names, parentage and full particulars of the accused were informed to him on the following day of the occurrence by Furqan Aziz, (PW-11). The identification of the accused was conducted in the lock-up of police station. Admittedly Amjad Sohail-appellant was arrested by Asmat Ullah, Inspector (PW-13) on 09.10.2006 and the eye witnesses, namely, Syed Khalid Javed (PW-9) and Hammad Zaheer (PW-10) identified him on 10.10.2006 in the lock-up of police station. The prosecution had not carried out the identification parade in accordance with the procedure laid down by the superior Court of the country and procedure laid down in Rule 26.32 of the Police Rules, 1934 whereas the procedure adopted by the prosecution was unwarranted in law. Again, this is a case where no description of culprits was made in the F.I.R. except mentioning of their ages, the identification parade, if even had been held, could hardly advance the case of the prosecution. Reliance is placed upon case of “**The State v. Subhoro**” (1993 SCMR 585).

15. The prosecution has, however, depended on the identification of accused, as already mentioned that the complainant has nominated the accused through supplementary statement and identified him in the lock-up of the police station, it is to be straightway excluded as the accused had been nominated by the complainant (PW-9) along with other co-accused and procedure adopted for identification was unwarranted in law and as such the identification of appellant, Amjad Sohail in count loose its value if it is done after

considerable delay. Reliance is placed on the case of **Nazir Ahmad** v. **Muhammad Iqbal** (2011 SCMR 527) wherein it is held that:-

“Identification of accused in court after a considerable delay of the incident cannot satisfy the requirement of law for proving his identity.”

16. The evidence of “Waj Takkar” was furnished by Furqan Aziz (PW-10) whereas that of Sajid (PW) was given up. As far as statement of Furqan Aziz (PW-11) the witness of “Waj Takkar” is concerned, admittedly he is close friend of the complainant. Nevertheless he claims to have seen the appellant and co-accused Nadeem alias Deema Machee (Proclaimed offender) on 22.09.2006 at about 8.00 p.m. there at Satellite Town on motorcycle, therefore, he learned about murder during dacoity and also met the complainant on the occasion of funeral ceremony at about 10.00 a.m. but he made his statement under Section 161 Cr.P.C. on 05.10.2006, which was recorded by Asmat Ullah, Inspector (PW-13) whereas, Furqan Aziz (PW-11) stated that he met police before 05.10.2006 but he did not inform them. The conduct of Furqan Aziz (PW-11) is un-natural and unbelievable, as presence of this prosecution witness at the relevant time could not be substantiated through any independent source in the shape of statements of the persons of “Jamate-Islami and Farid Town Union Council No.18. While considering the case of prosecution, hereinabove, it may be observed that the deceased, Suleman was not lastly seen in the accompany of appellant and Nadeem alias Deema Machee (Proclaimed Offender) mere passing from Satellite Town on

motorcycle does not establish guilt of the appellant nor connect him with the incident.

17. Another important aspect of the case which cannot go un-noticed is that while lodging the crime report, the complainant as well as eye witness namely Hammad Zaheer (PW-10) had not mentioned source of light at the place of occurrence. As per the prosecution case, the alleged occurrence took place at 7.45 p.m. at the outer door of the house of deceased, Suleman but no source of light has been shown. During trial, PWs No.9 & 10, Syed Khalid Javed and Hammad Zaheer who tried to improve their statements by stating that they saw the incident in tube light. They were duly confronted with their earlier statements and were seriously cross-examined on the source of light and all of them were confronted with their earlier statement, as it was a very material point. Even otherwise, both witnesses Syed Khalid Javed (PW-9) and Hammad Zaheer (PW-10) improved their statements in the court and the same was brought on record. They were specifically confronted that whether they saw the accused in the tube lights; that one accused made fire shot which hit on the left shoulder of the deceased and other accused made fire shot which after touching his left hand landed on his face; that no specific role is attributed to both the accused that they did not state that one of the accused came forward and picked the mobile phone of the deceased; PW-9 had also not stated that after ten minutes in the emergency ward Doctor informed him that the injured has expired; that they did not record height of the accused; they did not mention the entire descriptions of the accused, whereas the eye-witness (PW-10) Hammad Zaheer was also confronted with

the statement recorded under Section 161 Cr.P.C. with regard to the mobile; that whether they were playing with mobile; that mobile was snatched by the accused; that before firing, Irfan handed over his mobile phone to the accused. All the aforementioned assertions/facts were not mentioned in their statements i.e. in complaint (Ex.P.D/2) as well as statement under Section 161 Cr.P.C. The improvements and contradictions made by both eye-witnesses i.e. PW-9 and PW-10 make their testimony not reliable and trust worthy.

18. According to the F.I.R., within the sight of complainant both the accused started firing on his son, one fire shot hit the deceased under the left shoulder and exit in upward direction. The second fire shot hit on back of his right hand and landed under his nose on right side and exit from back right side of his head. During trial, it was stated that appellant-Amjad Sohail made fire shot which hit his face after touching his left hand. It was not mentioned in the F.I.R that the fire hit the face after touching his left hand and the same was made by appellant-Amjad Sohail and a modified statement was made before the learned trial court after going through medical evidence. According to Dr. Jameel Ahmed Mirza (PW-3) deceased received following injuries:-

- i) *Firearm lacerated wound 3/4 x 3/4 cm into going deep, inverted margins on outer part of left upper arm, lower part of deltoid (wound of entry).*
- ii) *Firearm lacerated wound of exit 1 x 1 cm everted margins located at on outer part of left shoulder, middle part (wound of exit).*

- iii) *Firearm glancing wound 2 x 3/4 cm on back of left hand near base of middle finger.*
- iv) *Firearm glancing wound 3/4 x 1 cm (abrasion) between the opening of right nostril and right part of upper lip. The wound is continued into the right nostril.*
- v) *Firearm lacerated wound 1 x 1 cm on left side of occipital region with everted margins.*

Needless to mention here that both the eye witnesses were duly confronted with their earlier statements. The medical evidence only states about seat of injuries but not tell about assailants who caused the same.

19. As per contention of the learned Law Officer that at the time of spot inspection, the Investigating Officer (PW-13) had collected three crime empties from the place of occurrence, which were sent to the office of Forensic Science Laboratory along with pistol, recovered on the pointation of appellant and its report in respect thereof (Exh.P.N) is positive. The report of Forensic Science Laboratory (Exh.P.N) reveals that the parcels were received in the said office on 31.10.2006 and 04.11.2006 respectively. It is vividly clear from the record that the Investigating Officer had collected crime empties on 22.09.2006, which were sent to the office of Forensic Science Laboratory on 31.10.2006 i.e. after 40 days of alleged occurrence and after 32 days of the arrest of appellant and after 12 days of recovery of the alleged weapon i.e. pistol, hence the same losses its evidentiary value, as rules require that every parcel is required to be sent to the concerned office as early as possible, therefore,

in these circumstances, the positive report of Forensic Science Laboratory is not liable to believe. Reliance in this respect is placed on the ratio decidendi of August Supreme Court of Pakistan in the case of “**Ali Sher and others v. The State**”(2008 SCMR 707) wherein it was held as under:-

“.....S.302.....Reappraisal of evidence....Sending of crime-empties....Delay....Crime empties allegedly found at the place of occurrence were retained in police station and were sent to Forensic Science Laboratory, along with the crime weapons, 12 days after the recovery of alleged weapons....Effect.....Delay had destroyed the evidential value of such piece of evidence and the recoveries could not offer any corroboration to the ocular testimony.”

20. Much has been emphasized by the learned Law Officer as well as the learned counsel for complainant that the learned defence counsel at trial stage admitted presence of appellant at the spot, no inference can be drawn against the accused from mere line of cross-examination and the prosecution can not claim any benefit in such a situation. Reliance in this regard is placed on the case of “**Abdul Khaliq v. The State**” (1996 SCMR 1553), wherein the august Supreme Court of Pakistan has held as under:-

“.....S. 302/34...Evidence....Admissions by counsel....Effect.....Accused in a criminal case is not bound by the admission made by his counsel.”

While dealing with similar situation, in the case of **“Ghulam Shabbir v. The State** (PLJ 1987 Cr.C (Lahore 446), it was held as under:-

“...Cross-examination....Trend of...Suggestion...Held: Questions having not been shown to be put on clear instructions of client, no inference to be drawn against accused from mere line of cross-examination.....Counsel also not to be presumed to have put question in case on instructions of appellant.”

In the case of **“Gulfraz Khan Abbasi v. Wajid Khan and three others”** (2010 P.Cr.L.J 1952), it is held:-

“.....S.302/201/34...Qatl-e-Amd, Causing disappearance of evidence of offence..... Appreciation of evidence.... Suggestions made in evidence....Prosecution has to prove its own case and it can not take benefit of denied suggestions.”

21. From the perusal of whole record there is no tangible/incriminating material available on the file to connect the appellant with the commission of offence. It is established principle of law which has been the practice of superior Courts of the country that no one can be sent to gallows on the basis of conjectures and surmises. It is settled principle of law that in absence of any direct evidence circumstantial evidence should be beyond all doubts and the same must be in the shape of a chain. Before the guilt of the accused can be inferred merely from inculpatory circumstances, those circumstances should be founded to be incompatible with the innocence of the accused and incapable of explanation upon other reasonable hypothesis,

than that of his guilt. The hands of this Court are tied and in absence of any cogent/direct material, it is unable to arrive at conclusion of guilt of accused. Moreover, the same has been discouraged by the superior Courts of the country in the case of **“Muhammad Sarfraz Zkhan v. The Crown”** (PLD 1953 Federal Court. 317), wherein it has been held as under:-

“Evidence...Court canvassing mere probabilities of case and arriving at conclusion of guilt of accused....Disapproved....Judicial duty is to act on evidence duly admitted and tested according to recognized principles”.

22. Although the learned trial court has not awarded the conviction and sentence to the appellant under section 302 PPC, however, while considering the evidence available on the record we have come to the conclusion that charge under section 302 PPC is also not proved against the appellant.

23. From the facts and circumstances narrated above, we are persuaded to hold that prosecution has badly failed to substantiate its case against the appellant to the hilt and the learned trial court was not justified in convicting the appellant while basing upon such weakest/uncorroborated evidence and conviction passed by the learned trial court in the circumstances is against all canons of law recognized for the dispensation of criminal justice. As per dictates of law benefit of every doubt is to be extended in favour of the accused. Moreover, it is golden principle of law that the court may err in letting off hundred guilty but should not convict one innocent person on the basis of suspicion.

24. **Resultantly**, while setting aside the conviction and sentence recorded by the learned trial court in terms of judgment dated 15.09.2007, Crl. Appeal No.1394 of 2007 filed by Amjad Sohail/appellant is **ACCEPTED IN TOTO.** **Consequently, Amjad Sohail son of Muhammad Riaz, appellant is ordered to be acquitted** of the charge in case F.I.R. No.791 dated 22.09.2006, offence under Sections 302, 392 P.P.C., registered at Police Station, Satellite Town, Gujranwala. He is directed to be released forthwith, if not required in any other case. **Crl. Appeal No.1742/2013** filed by the complainant against acquittal of the accused is also **dismissed in limine.**

25. As far as **Capital Sentence Reference No.81-T of 2007** for confirmation of sentence of death inflicted upon, Amjad Sohail/convict is concerned, the same **fails**, which is answered in **NEGATIVE.** Death sentence is **NOT CONFIRMED.**

(SAYYED MAZAHAR ALI AKBAR NAQVI) (AALIA NEELUM)
JUDGE JUDGE

Approved for reporting

JUDGE

JUDGE